

WINDSTREAM SERVICES, LLC

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Subject: IBFS File No. ISP-PDR-20201021-00010, IB Docket No. 22-129; TT 22-011

Petition for Declaratory Ruling (“PDR” or “Petition”) by Windstream Holdings II, LLC asking the Federal Communications Commission (“FCC” or “Commission”) to find that it would serve the public interest to approve the increase of indirect foreign equity and voting interests in Windstream Holdings II, LLC, pursuant to Section 310(b)(4) of the Communications Act of 1934, as amended, 47 U.S.C. § 310(b)(4), and Section 1.5000(a)(1) of the Commission’s rules, 47 C.F.R. § 1.5000(a)(1).

Dear Sirs:

This Letter of Agreement (“LOA” or “Agreement”) sets forth the commitments that Windstream Holdings II, LLC (“Windstream”) makes to the U.S. Department of Justice (“USDOJ”), including the Federal Bureau of Investigation (“FBI”), the U.S. Department of Homeland Security (“DHS”), and the U.S. Department of Defense (“DOD”) (collectively, the

“Compliance Monitoring Agencies” or “CMAs”) to address national security and law enforcement risks arising from the above-referenced Petition to the FCC requesting the FCC approve an increase in the direct and indirect foreign equity and voting interests in Windstream, pursuant to Section 310(b)(4) of the Act and Section 1.5000(a)(1) of the Commission’s rules.¹

Windstream certifies as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements it or its representatives have made to USDOJ, DHS, the Department of Defense, and the FCC in the course of the review of the above-referenced PDR that was conducted pursuant to Executive Order 13913,² and hereby adopts those statements as the basis for this LOA.

Definitions

1. For purposes of this LOA, the following definitions apply:
 - a. “Access” means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology (“IT”) systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.
 - b. “Call Detail Record” (“CDR”) means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.
 - c. “Customer Proprietary Network Information” (“CPNI”) means as set forth in 47 U.S.C. § 222(h)(1).
 - d. “Cybersecurity Incident Response Plan” means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on the organization prompting the need for response and recovery.
 - e. “Date of FCC Approval” means the date on which the FCC releases a public notice granting the PDR.
 - f. “Domestic Communications” (“DC”) means:
 - (i) Wire Communications or Electronic Communications, as defined by 18 U.S.C. § 2510, (whether stored or not), from one location within the United States, including its territories, to another location within the United States; or

¹ See ISP-PDR-20201021-00010.

² 85 Fed. Reg. 19643 (Apr. 8, 2020).

- (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

g. “Domestic Communications Infrastructure” (“DCI”) means any Windstream system that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, Windstream to provide, process, direct, control, supervise, or manage DC but would not include the systems of entities for which Windstream has a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network access.

h. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. §§ 2510(1), (2), (4) and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 *et seq.*;
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 *et seq.* and 50 U.S.C. § 1841 *et seq.*;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States, or its territories.

j. “Geolocation Data” means any information collected by Windstream from its customers regarding a customer’s location or the customer’s device location.

k. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau or political subdivision, and any court, tribunal, judicial or arbitral body.

l. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems (“OSS”) and business support systems (“BSS”) by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

m. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates or authorizations, and other orders, legal process, statutory authorizations and certifications for Electronic Surveillance, physical search and seizure, production of tangible things, or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

n. “Managed Network Service Provider” (“MNSP”) means any third party that has Access to Principal Equipment for the purpose of:

- (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or
- (ii) provision of DC or operation of DCI, including: customer support; OSS; BSS; Network Operations Centers (“NOCs”); information technology; cloud operations/services; 5G (Software Defined Networking, Network Functions Virtualization, Applications); and datacenter services and operations.

o. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

p. “Offshore” means performing obligations of this LOA using entities and personnel outside of the territorial limits of the United States, whether or not those entities or personnel are employees of Windstream.

q. “Outsource” means, with respect to DC, supporting the services and operational needs of Windstream at issue in this LOA using contractors or third parties.

r. “Personally Identifiable Information” or “PII” means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including a natural person’s name, social security number, or biometric records, or when combined with other personal or identifying

information that is linked or linkable to a specific individual, including date and place of birth, or parent's surname.

s. "Principal Equipment" means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, protocols) that supports core telecommunications or information services, functions, or operations.

t. "Security" means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization's risk management approach.

u. "Security Incident" means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, U.S. Records;
- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the company's computer network(s) or associated information systems:
 - A. Unauthorized disruptions to a service or denial of a service to the Windstream network (excluding customer service outages caused by weather, wildlife, or other natural causes);
 - B. Unauthorized processing or storage of data;
 - C. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
 - D. Unplanned incidents that cause activation of Windstream's Cybersecurity Incident Response Plan;
 - E. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect the company's ability to comply with the terms of this LOA; or
 - F. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

v. “Sensitive Personal Data” means sensitive personal data as set forth in 31 C.F.R. § 800.241.

w. “Subscriber Information” means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

x. “U.S. Records” means Windstream’s customer billing records, Subscriber Information, PII, Sensitive Personal Data, CDRs, IPDRs, CPNI, Geolocation Data, and any other information used, processed, or maintained in the ordinary course of business related to the services offered by Windstream within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. §§ 2703(c), (d) and 18 U.S.C. § 2709.

Personnel

2. Windstream agrees to designate and maintain a U.S. law enforcement point of contact (“LEPOC”) in the United States who will be subject to prior approval by USDOJ, including the FBI. The LEPOC shall be a U.S. citizen residing in the United States or its territories unless USDOJ otherwise agrees in writing. The LEPOC must be approved by the FBI to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

3. Windstream agrees to provide the LEPOC’s PII to USDOJ within 15 days of the Date of FCC Approval. USDOJ agrees to object or non-object within 15 days from receiving the LEPOC’s PII.

4. Windstream agrees to notify USDOJ, including the FBI, in writing at least 30 days prior to modifying its LEPOC for USDOJ and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, or death of the LEPOC, written notice will be provided within five days of such event. Under these circumstances, USDOJ and FBI will object or non-object to the replacement LEPOC within 30 days of notification.

5. Windstream agrees that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to the request no later than five days after receiving such Lawful U.S. Process unless USDOJ grants an extension or the Lawful U.S. Process itself includes a deadline later than five days after receipt.

6. Windstream agrees to implement, either directly or through a vendor, a process to screen existing or newly hired personnel who have Access to Windstream’s DC, DCI, or U.S. Records (including, but not limited to: Windstream personnel, its subsidiaries or affiliates’ personnel, Principal Equipment vendor or Outsourced or Offshored service provider personnel). To satisfy its obligations with respect to the employees of an approved Outsourced or Offshored service provider that has Access to DC, DCI, or U.S. Records, Windstream will seek to contractually commit such third parties to comply with the personnel screening process in this

paragraph. If a third party service provider fails to agree to such a commitment, Windstream will notify the CMAs within 14 days of the service provider's refusal and will not provide Access to Windstream's DC, DCI, or U.S. Records to such service provider or its personnel during those 14 days. The personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person's trustworthiness. Windstream further agrees to provide the CMAs with a written description of this personnel-screening process no later than 60 days after the Date of FCC Approval. The CMAs agree to object or non-object within 60 days of receiving notice.

7. Windstream agrees to notify the CMAs of all Foreign persons (including, but not limited to Windstream employees, its subsidiaries or affiliates' employees, Principal Equipment vendor or Outsourced or Offshored service provider employees), that it intends to allow Access to U.S. Records, DC, or DCI. Windstream agrees to make such notification no less than 30 days prior to the date by which it is seeking such Access be granted; or, with respect to any Foreign persons with such Access as of the Date of FCC Approval, within 30 days of the Date of FCC Approval. Windstream further agrees to provide the PII to the CMAs for each Foreign person so identified. The CMAs agree to object or non-object within 30 days of receiving notice.

Security Officer

8. Windstream agrees to designate and maintain a security officer ("Security Officer") who is a non-dual United States citizen residing in the United States and may also designate and maintain an alternate security officer ("Alternate Security Officer") to fulfill the responsibilities of the Security Officer in the event of the Security Officer's unavailability. The proposed Security Officer (and any Alternate Security Officer) must be eligible for a "Secret" level or higher U.S. Government security clearance. The Security Officer and any Alternate Security Officer will have the appropriate authority and skills to implement the terms of this LOA and to address security concerns identified by the CMAs. The Security Officer and any Alternate Security Officer will have the appropriate senior-level corporate authority within Windstream to perform his/her duties under this LOA. The Security Officer and any Alternate Security Officer will possess the necessary resources and skills to enforce this LOA and to act as a liaison to the CMAs regarding compliance with this LOA and to address any national security or law enforcement issues arising during Windstream's due course of business. Windstream will provide the Security Officer and any Alternate Security Officer with Access to Windstream's business information that is necessary for the Security Officer and any Alternate Security Officer to perform his/her duties.

9. The Security Officer will be available 24 hours per day, 7 days per week, to respond to and address any national security or law enforcement concerns that the CMAs may raise with respect to Windstream or its operations, except that if Windstream designates an Alternate Security Officer, then in the event that the Security Officer is unavailable, the Alternate Security Officer will be available to respond to and address such concerns. Upon CMA request, the Security Officer or, as applicable, Alternate Security Officer, will make himself/herself available in person within the United States or its territories, or if Windstream requests and the CMAs agree, by video conference, within 72-hours, at a date and location, including in a classified setting or by video conference, as deemed necessary by the CMAs.

10. Windstream agrees to nominate a proposed candidate for Security Officer to the CMAs within 15 days of the Date of FCC Approval, and thereafter will provide at least 10 days' notice of a Security Officer's departure, and 30 days' prior notice of a new Security Officer designation (except in the case of the unexpected firing, resignation, or death of the Security Officer in which case such written notice of such departure or designation must be provided within five days of such event). Windstream further agrees to not maintain a vacancy or suspension of the Security Officer position for a period of more than 60 days. In the event that Windstream designates an Alternate Security Officer, Windstream will nominate a proposed candidate for Alternate Security Officer at least 30 days prior to the date on which Windstream proposes to designate an Alternate Security Officer. Windstream agrees to provide the proposed Security Officer's (and any Alternate Security Officer's) PII with the nomination, along with the proposed Security Officer's plan to ensure Windstream employees are appropriately trained in LOA compliance. All Security Officer nominations and any Alternate Security Officer nominations will be subject to CMA review and non-objection and may be subject to a background check at the sole discretion of the CMAs. The CMAs will object or non-object to the proposed Security Officer or Alternate Security Officer, if applicable, within 30 days of notification. Windstream agrees to address concerns raised by the CMAs regarding the selection and identity of the Security Officer and any Alternate Security Officer.

Lawful U.S. Process and Requests for Information

11. Windstream agrees to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. Windstream further agrees to certify to USDOJ its compliance with the Communications Assistance for Law Enforcement Act ("CALEA"), 47 U.S.C. §§ 1001-1010, and its implementing regulations, within 30 days from the Date of FCC Approval.

12. Windstream agrees to provide notice of any material modification to its lawful intercept capabilities to USDOJ within 30 days of such modification and will re-certify its compliance with CALEA no more than 60 days following its notice to USDOJ of any material new facilities, services, or capabilities.

13. Upon receipt of any Lawful U.S. Process, Windstream agrees to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide information to the requesting officials, in a manner and time consistent with the Lawful U.S. Process.

14. Windstream agrees not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC, to any Foreign Government, Foreign entity, or any Foreign person (other than those Foreign persons that are (1) screened consistent with Paragraph 7 of this LOA; or (2) employed by an Outsourced or Offshored service provider approved pursuant to Paragraphs 33 and 34 of this LOA), without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

15. Windstream agrees not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign entity, or any person not authorized under the Lawful U.S. Process, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

16. Windstream agrees to refer any requests for information described in Paragraphs 14 or 15 from a Foreign person or a Foreign Government, including any legal process from a Foreign Government, to USDOJ as soon as possible, but in no event later than five days after such a request, or legal process, is received by, or made known to, Windstream, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

17. Windstream agrees not to comply with such requests from Foreign Governments and Foreign persons without prior written consent of USDOJ, or an order of a court of competent jurisdiction in the United States.

18. Windstream agrees to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

Unauthorized Access and Security Incidents

19. Windstream agrees to take all appropriate measures to prevent unauthorized Access to U.S. Records, DC, and the DCI.

20. Windstream agrees to take all appropriate measures to prevent any unlawful use or disclosure of information relating to U.S. Records or DC.

21. Windstream agrees to prepare: (1) a Cybersecurity Plan; and (2) a comprehensive System Security Plan (“SSP”) (together the “Plans”), each of which shall be guided by the current version of the National Institute of Standards and Technology (NIST) Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, or other international information security standards. Windstream will provide copies of those Plans to the CMAs within 60 days of the Date of FCC Approval for objection or non-objection. Furthermore, Windstream agrees that the Plans will be updated when appropriate to conform with evolving information security standards, and that Windstream will make additional modifications to these Plans, if requested by the CMAs, and will work with the CMAs to implement such modifications. The CMAs agree to object or non-object within 60 days of receiving each version of the Plans.

22. Windstream agrees that its Plans will include, among other things, policies relating to its information security, supply chain security, peering and routing security, cybersecurity incident response, remote Access, physical security, cybersecurity, third-party contractors, Outsourcing and Offshoring, maintenance and retention of system logs, periodic control assessments, protection of Lawful U.S. Process, protection of U.S. Records and DC obtained by Windstream in the ordinary course of business, and Windstream’s plans regarding

new contracts or amendments to existing contracts with third-party service providers requiring those third parties to: a) notify Windstream when required under Paragraphs 26 and 27, and b) screen personnel as required under Paragraphs 6 and 7.

23. Windstream further agrees to take timely and appropriate remedial measures, as recommended by the US-Computer Emergency Readiness Team/Cybersecurity and Infrastructure Security Agency (“US-CERT”/“CISA”), an Information Sharing and Analysis Center (“ISAC”), or similar U.S. authority, to respond to and recover from any cyber or supply chain incident and mitigate vulnerabilities.

24. Windstream agrees to notify USDOJ at least 30 days prior to changing the location for storage of U.S. Records or DC. USDOJ will object or non-object within 30 days of receipt of Windstream’s submission. Such notice shall include:

- a. A description of the type of information to be stored in the new location;
- b. The custodian of the information (even if such custodian is Windstream);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plan detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

Reporting Incidents and Breaches

25. Windstream agrees to report to the CMAs promptly, and in any event no later than 72 hours, after it learns of information that reasonably indicates a known or suspected:

- a. Security Incident;
- b. Unauthorized Access to, or disclosure of, any information relating to services provided by Windstream, or referring or relating in any way to Windstream’s customers in the United States or its territories;
- c. Any unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or
- d. Any material breach of the commitments made in this LOA.

26. Windstream agrees to require any third-party service provider to disclose to Windstream any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach, or other cause, within 72 hours of the third party discovering the breach or loss. Windstream agrees further to require any third-party service provider to disclose to Windstream, within 72 hours of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services provided to Windstream that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the third-party providers’ supply chain.

27. Windstream agrees to notify the CMAs, including the points of contact (“POCs”) listed in this LOA, in writing of any of the Security Incidents or breaches described in this LOA.

Such notification shall take place no later than 72 hours after Windstream has knowledge of, or is informed by, a third party providing Outsourced or Offshored services to Windstream, that the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or regulations.

28. Windstream agrees to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within seven business days after reasonable determination that a person without authorization, or in exceeding their authorization, has gained Access to, used, or disclosed CPNI, whether through Windstream's network or that of a third party used by Windstream, and shall electronically report the matter to the central reporting facility through the following portal: <https://www.cpnireporting.gov>

Principal Equipment

29. Windstream agrees to provide the CMAs within 30 days of the Date of FCC Approval, a Principal Equipment list. The CMAs will object or non-object to the Principal Equipment list within 60 days of receipt. The Principal Equipment list shall include the following:

- a. A complete and current list of all Principal Equipment, including:
 - (i) a description of each item and the functions supported,
 - (ii) each item's manufacturer,
 - (iii) the model number of any hardware or software, and
 - (iv) version number of any hardware or software.
- b. The name, address, phone number, and website for any vendors, contractors, or subcontractors involved in providing, installing, operating, managing, repairing, or maintaining the Principal Equipment.

30. Windstream agrees to notify the CMAs in writing at least 30 days prior to introducing any new Principal Equipment of a different make or model than the Principal Equipment identified and approved pursuant to Paragraph 29, or subsequently approved by the CMAs pursuant to this paragraph, or modifying any of its Principal Equipment. The CMAs will object or non-object to such new Principal Equipment or modification to the Principal Equipment within 30 days of receipt of notice. In an emergency situation, Windstream may, without prior notice, replace existing Principal Equipment with equipment produced by the same manufacturer (who has previously been disclosed to the CMAs and cleared without objection pursuant to the procedures in Paragraph 29 of the LOA), as long as the CMAs are notified of the new equipment as soon as practicable and in no event later than 72 hours after replacement. Windstream may implement routine necessary patches from existing vendors already approved by the CMAs. Once every calendar quarter, Windstream shall provide notice to the CMAs of any software updates that occurred during that quarter.³

³ For the purposes of this paragraph, "software updates" refers to changes in the first two digits of a semantic versioning identifier, not the third digit. For example, a change from version 1.1 to 1.2 would be notifiable, but not 1.1.1 to 1.1.2.

31. Windstream agrees to provide the CMAs with the name, address, phone number, and website of any providers, suppliers, and entities that will perform any maintenance, repair, or replacement that may result in any introduction of new Principal Equipment or modification to its Principal Equipment, systems, or software used with or supporting the Principal Equipment. The CMAs will object or non-object to the nominated providers, suppliers, and entities selected by Windstream within 30 days of receipt of notice.

32. Windstream agrees to provide to the CMAs updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence (“PoPs”), exchange points, and NOCs within 60 days of the Date of FCC Approval.

Outsourced and Offshored Services

33. Windstream agrees to provide the CMAs within 30 days of the Date of FCC Approval, a list of all Outsourced or Offshored service providers that provide services to Windstream. The CMAs will object or non-object to the Outsourced and Offshored service provider list within 60 days of receiving notice. The list should include any Outsourced or Offshored service provider that provides services for:

- a. MNSP services;
- b. NOC(s);
- c. Network maintenance services;
- d. Billing or customer support services;
- e. Any operation or service that could potentially expose DCI, DC, or U.S. Records; and
- f. Deploying any network elements, hardware, software, core network equipment, and network management capabilities, including those that are owned, managed, manufactured, or controlled by a Foreign Government.

Windstream further agrees to provide the name, address, phone number, website, and description of services provided for each Outsourced or Offshored provider included on the list submitted to the CMAs pursuant to this paragraph.

34. Windstream agrees to notify the CMAs in writing no less than 30 days prior to the use of any new Outsourced or Offshored service providers that will provide any of the services described in Paragraph 33. Windstream agrees that such notification shall include all of the identifying information contained in Paragraph 33 for the new Outsourced or Offshored service provider.

35. The CMAs will object or non-object to any new Outsourced or Offshored service providers within 30 days of receiving notice.

Network Operations Centers

36. Windstream agrees to notify the CMAs in writing at least 60 days prior to changing the location of its NOCs. The CMAs will object or non-object to any new NOC location within 60 days of receiving notice of the proposed location change. Windstream will provide the address, owner (even if Windstream), Principal Equipment, and MNSP (as well as

any new Outsourced or Offshored service providers) of the NOC with the notification, as well as appropriately updated SSP and Cybersecurity Plan.

Change in Ownership and Service Portfolio

37. Windstream agrees to provide the CMAs notice of any changes to its business, including but not limited to corporate structure changes, ownership changes,⁴ corporate name changes,⁵ business model changes, corporate headquarter location changes, or business operation location changes no less than 30 days in advance of such change. Windstream also agrees to provide the CMAs notice within 30 days of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of Windstream's debts.

38. Windstream agrees to provide the CMAs notice of any material change to its current portfolio of services offering, including offering other services beyond its current service portfolio, no less than 30 days in advance of such change. The CMAs will object or non-object within 30 days of receiving notice.

Third-Party Compliance Audit

39. At their sole discretion, but no more frequently than once every calendar year unless the original audit is found by the CMAs to have been unsatisfactory, the CMAs may request Windstream to undergo a neutral third-party compliance audit of LOA compliance

⁴ For the purposes of this paragraph, "ownership changes" means any of the following: (1) a replacement or change in control of Brigade Capital Management LP, Elliott Associates L.P., Franklin Mutual Advisers LLC, Nexus Aggregator, L.P., Oaktree WIN Management, LLC, PIMCO LLC, or any of their respective successors as general partner, managing member, manager, adviser, sub-adviser, or other similar managing fiduciary (the "Managers") of the funds, vehicles, entities, and accounts that will invest, directly or indirectly, into Windstream (the "Underlying Principal Funds"); (2) any new investment by, or change in existing rights of, any limited partner, investor, or owner associated with any of the Underlying Principal Funds that results in a Manager giving that individual or entity a right to: (a) manage or control the activities of Windstream or its subsidiaries; and/or (b) gain Access to DC, DCI, or U.S. Records; or (3) any change in Windstream's governing documents (including the Amended and Restated Limited Liability Company Agreement By and Among Windstream Holdings II, LLC, and the Effective Date Members, Their Transferees, and Such Other Persons Party Hereto, dated as of September 21, 2020) that would achieve the same effect or that would change the allocation of seats on Windstream's Board of Managers. In addition, with respect to any calendar month during which any non-U.S. ultimate beneficial owner has acquired a direct or indirect equity interest in Windstream of five percent or more, Windstream shall provide an updated list of all non-U.S. ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in Windstream no later than the end of the following calendar month.

If at any time Windstream (or any parent entity or affiliate thereof) becomes subject to the periodic reporting requirements of the Securities Exchange Act of 1934, in lieu of the 30 day advance notice requirement for beneficial ownership changes above, Windstream agrees to provide the CMAs notice within 30 days of Windstream (or such parent or affiliate entity) learning of a new owner of a five percent or greater interest as a result of a filing submitted to the Securities and Exchange Commission.

⁵ For the purposes of this paragraph, "corporate name changes" means any change in the names of Windstream Holdings II, LLC, Windstream Services, LLC, any entity that wholly owns Windstream Holdings II, LLC directly or indirectly, and any new brand names used by Windstream subsidiaries that hold FCC authorizations.

(including any plan, policy, or procedure approved under this LOA). In connection with the audit:

- a. Within 60 days of the CMAs requesting a third-party audit, Windstream will nominate a third-party auditor, subject to CMA approval. Within 60 days of the nomination, the CMAs will approve or disapprove the nominated third-party auditor. As part of the auditor nomination and approval process, Windstream will disclose information regarding Windstream' and nominated auditor's pre-existing relationship (if any).
- b. Windstream will be solely responsible for any costs associated with any third-party audit carried out pursuant to this Section. The CMAs will consider avoidance of unreasonable costs as a factor when exercising their rights under this Section.
- c. Windstream will ensure the selected third-party auditor submits, within 15 days of CMA non-objection to the auditor and prior to commencing the audit, a methodology and proposed scope of audit, both of which will be subject to CMA approval. The statement of work shall allow for direct communication between the CMAs and the third-party auditor, without notice to or participation of Windstream.
- d. Windstream will ensure that the executed engagement agreement with the third-party auditor is provided to the CMAs within five days of execution.
- e. The third-party auditor will promptly deliver to the CMAs and Windstream all reports and related information generated or gathered during its review that relate directly to Windstream' compliance with the terms of this LOA and will agree to meet independently with the CMAs upon request. Such meeting will occur via video conference whenever possible. Unless otherwise agreed to by the CMAs, the Compliance Audit report shall be submitted to the CMAs by the auditor at the same time it is submitted to Windstream.

Annual Report

40. Windstream agrees to provide an annual report to the CMAs regarding the company's compliance with this LOA, to include:

- a. If Windstream submitted no notifications to the CMAs pursuant to this LOA during the preceding year, a Certification that there were no developments that Windstream was required to report under the LOA during the year;
- b. Description of the company's handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein) including an updated list of individuals with Access to U.S. Records, DC, and DCI, and the PII for each Foreign person so identified;
- c. Updated Principal Equipment and Offshored and Outsourced Service Provider Lists;
- d. Notice if Windstream has used in the past year, or plans to use in the future, logic-bearing (e.g., readable, writable, programmable) hardware, firmware, or software in their DCI; Principal Equipment; or other systems supporting DC, DCI, or U.S. Records, that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. "foreign

- adversary” (as designated by the Department of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
- e. Notice if Windstream has used in the past year, or plans to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in its DCI; Principal Equipment; or other systems supporting DC, DCI, or U.S. Records, from a provider listed on the FCC’s Covered List (*See* FCC, List of Equipment and Services Covered By Section 2 of the Secure Networks Act, <https://www.fcc.gov/supplychain/coveredlist>), the Commerce Department’s Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S.C. § 1321 *et seq.*;
 - f. Description of the LOA compliance trainings conducted in the past year;
 - g. List of every relationship with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
 - h. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs,
 - i. Updated SSP and Cybersecurity Plan;
 - j. Updated organizational chart showing all owners with a five percent or greater ownership share;
 - k. Report(s) of any Security Incidents;
 - l. A re-identification of every location that Windstream stores U.S. Records and the types of U.S. Records collected and stored;
 - m. A re-identification of the name and contact information of the LEPOC, Security Officer, and Alternate Security Officer;
 - n. A list of all filings or notices to the FCC in the prior year, and a copy of these filings if requested by the CMAs;
 - o. Certification of compliance with CALEA and any other applicable U.S. lawful interception statutes, regulations, and requirements;
 - p. A description of the services that Windstream provides in the United States to include: the specific services provided using FCC license or authorization and other services it provides in the United States that do not require FCC license or authorization. Such a description should also detail any services provided to Government or critical infrastructure customers; and
 - q. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. Windstream agrees to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that the CMAs identify to Windstream in the future: Mark Goldberg, USDOJ (at mark.goldberg@usdoj.gov); Tyler Wood, USDOJ (at Compliance.Telecom@usdoj.gov); Dustin Dwyer, DHS (at Compliance@hq.dhs.gov); Melissa Figueroa, DHS (at Melissa.Figueroa@associates.hq.dhs.gov); and DOD (at osd.pentagon.ousd-a-s.list.team-telecom@mail.mil). Upon CMA request, Windstream agrees to provide the CMAs with paper copies of any annual report, notices, or communications required under this LOA.

Site Visits

41. Windstream agrees to permit the CMAs' requests for site visits and information, approve all requests to conduct on-site interviews of Windstream employees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA. Site visits and interviews may be done through video conference if mutually agreed to by Windstream and the CMAs. Unless due to exigent circumstances, site visits and interviews will take place during Windstream's normal business hours. The CMAs retain complete discretion to determine when circumstances are exigent. The CMAs agree to provide Windstream with reasonable notice prior to making requests under this paragraph.

General Provisions

42. If the CMAs find that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, Windstream agrees to resolve the CMAs' concerns, according deference to the CMAs' views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to Windstream or its successors-in-interest, or any other appropriate enforcement action required to address the concern.

43. Windstream agrees that in the event that Windstream breaches the commitments set forth in this LOA, to include conduct contrary to timely CMA objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to Windstream or its successors-in-interest, in addition to pursuing any other remedy available by law or equity.

44. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays. Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday. Any approval provision applicable to the CMAs pursuant to this LOA shall be tolled during a lapse in appropriations or any time when the Federal government in the greater Washington, D.C. area is closed.

45. Windstream agrees to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to Federal government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

46. Windstream understands that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to the FCC granting the PDR.

For Windstream:

DocuSigned by:

Tony Thomas

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Tony Thomas, President & Chief Executive Officer

Windstream Holdings II, LLC